BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **FEDERAL EXPRESS CORPORATION,** and DOES 1 through 10, inclusive, Defendants.	**Case No. 2:26-cv-02881-DAD-SCR** **PLAINTIFF'S FIRST SET OF INTERROGATORIES TO DEFENDANT FEDERAL EXPRESS CORPORATION** Assigned to Hon. Dale A. Drozd Magistrate Judge Sean C. Riordan

Plaintiff's First Set of Interrogatories to Defendant Federal Express Corporation

Pursuant to Federal Rules of Civil Procedure 26 and 33, Plaintiff serves these interrogatories on Defendant Federal Express Corporation. Each answer must be made separately and fully under oath and signed as required by Rule 33(b).

Definitions

These requests use the following definitions solely for discovery:

You, Your, Defendant, or FedEx: Federal Express Corporation and its employees, agents, representatives, departments, databases, and persons acting on its behalf concerning Plaintiff's application or background screening.

Plaintiff: Brendan Ngehsi Newanforbi.

2025 Application: Plaintiff's application completed on or about January 8, 2025, associated with FEDEX GROUND HR, the March 10, 2025 pre-adverse-action notice, and the March 19, 2025 adverse action.

Report: every consumer report, investigative consumer report, background-screening result, component result, source record, attachment, score, adjudication result, notice, and updated version concerning Plaintiff that First Advantage prepared, maintained, or transmitted in connection with the 2025 Application.

Registry Information: information identifying or describing Plaintiff as a sex-offender registrant, or referring to NSOPW, the National Sex Offender Public Website, a national sex-offender-registry search, the California Sex Offender Registry, California's Megan's Law website, Penal Code section 220(a)(1), or registration status.

Prior FedEx Application: every application by Plaintiff before the 2025 Application for employment or engagement with Defendant or a FedEx-affiliated entity whose records are in Defendant's possession, custody, or control.

Document: the broad meaning in Federal Rule of Civil Procedure 34(a), including electronically stored information, native files, email, messaging, database entries, audit logs, metadata, reports, notes, and paper records.

Identify a person: state the person's name, title, employer, role concerning the subject matter, and last known business contact information.

Identify a document: state its date, author, recipients, title or description, custodian, and Bates number if produced.

Instructions

- Respond separately and fully in writing within 30 days after service, subject to any different deadline fixed by rule, stipulation, or court order.

- If you object to any portion, state the specific ground and respond to every unobjectionable portion. Do not withhold responsive material based only on a general objection.

- If information is unavailable after a reasonable inquiry, describe the inquiry and state what information remains unavailable.

- These requests are continuing to the extent required by Federal Rule of Civil Procedure 26(e).

Plaintiff's First Set of Interrogatories to Defendant Federal Express Corporation

INTERROGATORY NO. 1: State verbatim each question, instruction, certification, or statement in the 2025 Application that Defendant contends Plaintiff answered falsely or misleadingly, state Plaintiff's answer, and state the complete factual basis for the contention that the answer was false, misleading, and material.

INTERROGATORY NO. 2: State the date on which Defendant first learned of each alleged misrepresentation identified in response to Interrogatory No. 1 and identify each person who first learned of it.

INTERROGATORY NO. 3: Identify every person who participated in, recommended, approved, reviewed, or communicated about the decision to issue the March 10, 2025 pre-adverse-action notice or the March 19, 2025 final adverse action.

INTERROGATORY NO. 4: State every reason Defendant considered or relied upon in deciding not to hire Plaintiff in connection with the 2025 Application.

INTERROGATORY NO. 5: Identify every contemporaneous document that records, reflects, or communicates a reason for the adverse action on the 2025 Application.

INTERROGATORY NO. 6: State whether Defendant contends it would have taken the same adverse action if the Report had contained no Registry Information, and state every fact supporting that contention.

INTERROGATORY NO. 7: Identify each Prior FedEx Application, including the approximate date, position, facility, employing or engaging FedEx entity, outcome, and whether Plaintiff began work.

INTERROGATORY NO. 8: For each Prior FedEx Application that resulted in Plaintiff being hired or beginning work, state whether Defendant contends Plaintiff gave the same or a materially similar answer to the application question at issue in Interrogatory No. 1.

INTERROGATORY NO. 9: Identify every First Advantage product, package, search component, database, and adjudication service Defendant ordered or caused to be ordered in connection with the 2025 Application.

INTERROGATORY NO. 10: Describe all information from the Report that any FedEx person or system accessed, displayed, downloaded, reviewed, transmitted, or used before the March 19, 2025 adverse action.

INTERROGATORY NO. 11: Identify every person who accessed, reviewed, downloaded, or received the Report or any component result, and state the date and purpose of each access known to Defendant.

INTERROGATORY NO. 12: State Defendant's understanding of the relationship, if any, between the NSOPW or national sex-offender search result and the California sex-offender-registry or Megan's Law information referenced in Plaintiff's Report.

INTERROGATORY NO. 13: State every fact supporting Defendant's affirmative defense that Registry Information was used to protect a person at risk under California Penal Code section 290.46(j)(1), including the identity or description of the person allegedly at risk and the particular risk asserted.

INTERROGATORY NO. 14: Identify every federal, state, or local law that Defendant contends required or authorized it to obtain or use Registry Information for the position associated with the 2025 Application.

INTERROGATORY NO. 15: Identify each policy, guideline, matrix, instruction, training material, or decision rule in effect from January through March 2025 concerning sex-offender-registry information, application misrepresentations, criminal history, or adjudication of FedEx Ground applicants.

INTERROGATORY NO. 16: Describe each communication between Defendant and First Advantage concerning Plaintiff, the 2025 Application, the Report, adjudication, pre-adverse action, final adverse action, or any dispute or reinvestigation.

INTERROGATORY NO. 17: Identify the FedEx entity, business unit, and department that made the conditional offer and adverse-action decision, and explain the role of FEDEX GROUND HR in those decisions.

INTERROGATORY NO. 18: State the position title, facility, anticipated start date, pay rate, expected weekly hours, shift, benefits, and duration associated with the conditional employment opportunity withdrawn in March 2025.

INTERROGATORY NO. 19: Describe the steps Defendant has taken to preserve documents and electronically stored information concerning Plaintiff's applications, prior FedEx work, the 2025 Application, the Report, and the adverse-action decision, without disclosing privileged communications.

INTERROGATORY NO. 20: State the complete factual basis for Defendant's seventh affirmative defense, including its assertion that Plaintiff answered 'NO' to questions concerning sex-based offenses.

INTERROGATORY NO. 21: State the complete factual basis for Defendant's eighth affirmative defense under Penal Code section 290.46(j)(1).

Dated: September 25, 2026

/s/ Brendan Ngehsi Newanforbi
BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per

Certificate of Service

I declare that on September 25, 2026, I served a true copy of **Plaintiff's First Set of Interrogatories to Defendant Federal Express Corporation** on counsel for Defendant Federal Express Corporation as indicated below:

Allison A. Kray, Senior Attorney
Federal Express Corporation Legal Department
2601 Main Street, Suite 1100
Irvine, California 92614
allison.kray@fedex.com

[ ] By email, pursuant to the parties' written agreement to electronic service.
[ ] By first-class United States mail, postage fully prepaid.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct. Executed on September 25, 2026, at _____, California.

_____
BRENDAN NGEHSI NEWANFORBI